

Court No. - 21

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur Nagar

Respondent :- Kanpur Electricity Suply Company Ltd And 1 Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Meter installed at the premises of the petitioner was inspected in the month of August, 2017 and was found to be defective and slow in recording the consumption of electrical energy. On the basis of the double pole meter installed outside the premises of the petitioner, it was found that meter was running slow since August, 2016 and an assessment demanding a sum of Rs.10,08,031/- for the period from August, 2016 to June, 2017 was raised.

Learned counsel for the petitioner contends that since the petitioner agreed with the report in view of Clause 5.6(c)(ii) of the Electricity Supply Code, 2005 (hereinafter referred to 'Code, 2005'), which is quoted hereinunder, the demand for the period beyond three months prior to month in which dispute arose is rendered illegal.

5.6 Defective Meters.--(a).....

(b).....

(c).....

(i).....

(ii) In case the meter is found fast/slow by the licensee, and the consumer agrees to the report, the meter shall be replaced by a new meter within 15 days, and bills of previous three months prior to the month in which the dispute has arisen shall be adjusted in the subsequent bill as per the test results. In case meter is found to be slow, at the request of the consumer, these charges may be recovered in instalments not exceeding three."

It is further submitted that the demand for the entire period from August, 2016 to June, 2017 on the ground that the petitioner agreed to the report is illegal and against the aforesaid provisions of the Code, 2005. He also submits that future bills have been raised thereafter the petitioner has deposited still the electricity connection has been disconnected.

Sri S.K. Yadav, who has accepted notice on behalf of respondents no. 1 and 2, on the basis of instruction, states that

there has been a default in payment of regular bills on account of which the electricity connection has been disconnected.

Be that as it may, prima facie, in view of the provisions of Clause 5.6. (c) (ii) of the Code, 2005 the petitioner can only be charged for use of electricity in case the meter is running slow for previous three months prior to the month in which the dispute has arisen.

Sri S.K. Yadav, learned counsel appearing for the respondents no. 1 and 2 may file counter affidavit within six weeks. Petitioner will have two weeks thereafter for filing rejoinder affidavit.

List after expiry of the aforesaid period.

Considering the facts and circumstances, in case the petitioner deposits a sum of Rs.3 lac with the respondent within a period of one month from today, (average assessment for the last three months when the dispute has arisen between the parties) the electricity connection of the petitioner shall be restored within a week subject to further condition that there is no outstanding arrears of the current bills and in case there is any outstanding dues the re-connection shall be made after deposit of the outstanding dues. The petitioner shall go on making the payment of regular bills as and when they are raised.

A certified copy of this order be made available to the learned counsel for the petitioner within 24 hours on payment of usual charges.

Order Date :- 7.2.2018
OP

Court No. - 35

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur Nagar

Respondent :- Kanpur Electricity Suply Company Ltd And 1 Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Learned Counsel for the respondent prays for and is granted two weeks further time to file a counter affidavit.

List thereafter.

Order Date :- 9.4.2018

S.P.

Court No. - 35

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur Nagar

Respondent :- Kanpur Electricity Suply Company Ltd And 1 Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Bharati Sapru,J.

Hon'ble Saral Srivastava,J.

Counter affidavit filed today in Court is taken on record.

Learned counsel for the petitioner prays for and is granted three weeks time to file a rejoinder affidavit.

List thereafter.

Order Date :- 24.4.2018

Ishan

Court No. - 32

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd
Kanpur Nagar

Respondent :- Kanpur Electricity Suply Company
Ltd And 1 Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Suman Kumar
Yadav

Hon'ble Shashi Kant Gupta,J.

Hon'ble Rajiv Gupta,J.

Learned counsel for the petitioner prays for and is granted three weeks time for filing rejoinder affidavit.

List immediately thereafter.

Order Date :- 2.7.2018

Arun

Court No. - 21

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur
Nagar

Respondent :- Kanpur Electricity Supply Company Ltd. And
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Rejoinder affidavit filed today is taken on record.

List this case on 09th January, 2019.

Order Date :- 2.1.2019

SKT/-

Court No. - 21

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur
Nagar

Respondent :- Kanpur Electricity Supply Company Ltd And 1
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

We have heard Sri Bidhan Chandra Rai, learned counsel for the petitioner, and Sri S.K. Yadav, learned counsel for the respondents, at length.

Sri S.K. Yadav, learned counsel for the respondents, seeks adjournment to get the instruction to clarify certain points.

In the interest of justice, the matter is adjourned.

List this case on 06th February, 2019.

Order Date :- 9.1.2019

SKT/-

Court No. - 21

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur
Nagar

Respondent :- Kanpur Electricity Suply Company Ltd And 1
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

On the illness slip of Ms. Suman Kumar Yadav, learned counsel
for the respondents, the case is passed over for the day.

Order Date :- 6.2.2019

SR

Court No. - 21

Case :- WRIT - C No. - 5220 of 2018

Petitioner :- M/S Medvantage Innovation Pvt. Ltd Kanpur Nagar

Respondent :- Kanpur Electricity Suply Company Ltd And 1 Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

In spite of notice served upon the learned counsel for the respondents, he is not present.

In view of change of roster, the matter is released.

List this case on 15th April, 2019, before the appropriate Bench, showing the name of Sri S.K. Yadav, Advocate as counsel for the respondents.

Order Date :- 4.4.2019

SR